

**RESOLUTION OF THE BOARD OF EDUCATION OF THE [DISTRICT] SCHOOL  
DISTRICT**

The [District] School District Board of Education (the “Board”) met electronically in regular session on the \_\_\_\_ day of \_\_\_\_, 2021, with the following members present:

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\_\_\_\_\_ moved for the adoption of the following Resolution:

**RESOLUTION #\_\_\_\_\_**

**A RESOLUTION AUTHORIZING EMPLOYMENT OF CERTAIN INDIVIDUALS  
GRANTED TEMPORARY SUBSTITUTE LICENSURE  
IN ACCORDANCE WITH HB 409**

**WHEREAS**, on January 7, 2021, the Governor of Ohio signed into law Amended House Bill 409 (“HB 409”), addressing in part the need to ensure that school districts and schools can employ an adequate number of substitute teachers for the 2020-2021 school year due to the COVID-19 pandemic;

**WHEREAS**, the Ohio Revised Code and Ohio Administrative Code set forth minimum licensure requirements for substitute teachers;

**WHEREAS**, with respect to substitute teacher employment and licensure, Section 3 of HB 409 permits school governing bodies, in accordance with the district’s or school’s own set of educational requirements, to employ an individual who does not hold a post-secondary degree as a substitute teacher for the 2020-2021 school year only, provided that all other applicable requirements and procedures contained in the Ohio Revised Code and the Ohio administrative Code with respect to the individual’s qualifications to be a substitute teacher in the district or school or satisfied;

**WHEREAS**, Section 3 of HB 409 further provides that the State Board of Education shall issue a non-renewable temporary substitute teaching license to an individual who does not hold a post-secondary degree for the 2020-2021 school year only, provided the applicant meets all other requirements and procedures contained in Ohio Revised Code Section 3319.226 and Ohio Administrative Code Rule 3301-23-44; and

**WHEREAS**, the Board wishes to authorize the employment of such substitute teachers in accordance with HB 409.

**NOW, THEREFORE, BE IT RESOLVED** by the Board:

Section 1. Pursuant to HB 409, the Board hereby authorizes the Superintendent to recommend for employment as substitutes during the 2020-2021 school year only, properly licensed individuals who do not hold a post-secondary degree so long as such individuals meet all other applicable credential requirements. To the extent that this resolution conflicts with any current Board policy, the directives in this resolution shall prevail over any such policy provisions.

Section 2. The Board President, the Superintendent, and/or the Treasurer are authorized and directed to take all other such actions as are necessary or appropriate to accomplish the objectives of this Resolution.

Section 3. It is hereby found and determined that all formal actions of this Board concerning and relating to the adoption of this Resolution were adopted in an open meeting held electronically by this Board, and that all deliberations of this Board and any of its committees that resulted in such formal action were in meetings open to the public or in executive session as permitted by Ohio law.

Section 4. This Resolution shall take effect and be in force from and after the earliest period allowed by law.

Upon roll call, the vote resulted as follows:

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**ADOPTED** by the [District] School District Board of Education this \_\_\_\_day of\_\_\_\_\_, 2021.

**CERTIFICATION OF TREASURER**

I, [Treasurer name], Treasurer of the Board of Education of the [District] School District, hereby certify that the foregoing is a true and correct copy of a Resolution duly adopted by said Board of Education at its regular meeting on \_\_\_\_\_, 2021.

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Treasurer  
[District] School District  
Board of Education

